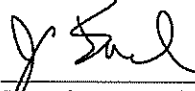


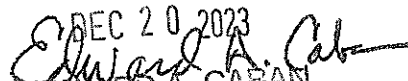
FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, July 5, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26445 against Detective Nicholas McQuail, Tax Registry No. 963347. The case was conferenced on May 9, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of a Schedule A Command Discipline with a forfeiture of five (5) vacation days for DADS No. 2022-26445, after accepting the finding(s) of substantiation of the allegations contained in the aforementioned Charges and Specifications. Charges and Specifications will be dismissed for plea purposes.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

APPROVED

DEC 20 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26445
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, MCQUAIL	FIRST NICHOLAS	M.I. P	COMMAND INTELL-CRIM. SECT. (DORMANT)
SHIELD NO. 24018	TAX REGISTRY NO. 963347	SOCIAL SECURITY NO.	DATE APPOINTED 01/04/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer NICHOLAS MCQUAIL, on or about December 29, 2020, at approximately 1621, while assigned to INT FIO PRG and on duty, in the vicinity of 89 East 116th Street, New York County, wrongfully used force, in that he dragged and pushed § 87(2)(b) without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 5.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.
2 . Police Officer NICHOLAS MCQUAIL, on or about December 29, 2020, at approximately 1621, while assigned to INT FIO PRG and on duty, in the vicinity of 89 East 116th Street, New York County, abused his authority as a member of the New York City Police Department, in that he threatened to Tase § 87(2)(b) without police necessity.	DISMISSED	

DC Brubio
FIRST DEPUTY COMMISSIONER

10/6/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

12/20/23
DATE